

Carmona says he used to take measurements. There is a triable issue of material fact with respect to the size of the defect. Cross-Defendant has not carried her burden to make a prima facie showing that the defect was trivial as a matter of law.

Cross-Defendant's Motion for Summary Judgment is **DENIED**. Plaintiff has lodged a proposed order which will be executed.

IN RE: CRENSHAW

Case Number: 24CV-0205679

Tentative Ruling on Petition for Change of Name: Petitioner Donald Cresswell Crenshaw seeks to change his name to Donald Cresswell Shearer III. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

FAUST VS. SUNFLOWER MANAGEMENT & OPERATIONS, LLC

Case Number: 24CV-0204258

Tentative Ruling on Motion to Be Relieved as Counsel: Adam Rose of Frontier Law Center moves to be relieved as counsel for Audrey Faust, individually and on behalf of all similarly situated individuals. The Court notes that while the class claims have been dismissed, there is still a cause of action brought under the Private Attorney Generals Act.

CRC Rule 3.1362 provides the procedural requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d). In this matter, Plaintiff Audrey Faust was served at her last known address. Counsel was not able to confirm the validity of this address within the last 30 days. To obtain a current address, counsel mailed the motion return receipt requested, called Plaintiff's last known phone number, and emailed Plaintiff. There is no evidence that any other efforts have been made. There is no evidence of the contents of the phone or email communications. The Proof of Service filed on October 7, 2024 only reflects service by mail and it appears that the motion was not emailed to Plaintiff.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Counsel represents that, "Audrey Faust has now stopped communicating with Frontier Law Center altogether, making further representation infeasible." This would constitute a valid reason for counsel moving to withdraw.

Due to the lack of proper notice to Plaintiff and insufficient efforts to determine a current address, the motion is **DENIED** without prejudice. A proposed Order was provided but it cannot be modified to reflect the Court's ruling. Plaintiff's counsel is to prepare the Order.

The Court notes that default was entered against Defendant on September 25, 2024. The Mandatory Settlement Conference on December 16, 2024 and the Trial on January 7, 2025 are hereby **VACATED**. The matter will be on calendar on **Monday, December 23, 2024 at 9:00 a.m. in Department 63** for review regarding status of the case and status of counsel.

FRINK VS. MANKA**Case Number: 23CV-0201842**

Tentative Ruling on Motion to Compel Further Discovery Responses and to Respond to Demand for Production of Documents: The present motion is unopposed. Plaintiff Samuel Frink moves for an order compelling Defendant Paul Manka to provide further responses to Form Interrogatories, Set One and to compel a response to the Demand for Production of Documents, Set One. Plaintiff has submitted a “declaration” in support of his motion, but it was not signed under penalty of perjury. See CCP § 2015.5. It therefore has no evidentiary value and cannot establish the facts necessary to issue any discovery orders.

The motion is **DENIED** without prejudice due to lack of evidence. No proposed order was lodged with the Court as required by Local Rule 5.17(D). Plaintiff shall prepare the order.

GALLEGOS VS. BENEFICIAL INSECTARY, INC**Case Number: 24CV-0205779**

Tentative Ruling on Motion to Compel Arbitration: Defendant Beneficial Insectary, Inc. moves for an order compelling Plaintiff Andrew Gallegos into arbitration, dismissing the putative class claims, and staying the matter during the pendency of the arbitration. The matter is stayed. On October 22, 2024, Plaintiff filed a Non-Opposition to Defendant’s Motion to Compel Arbitration and Stay Proceedings. On October 24, 2024, the Court issued an Order to the parties that noted the Non-Opposition and invited a Stipulation and Order as issuing a ruling on the merits of a non-opposed motion is not an efficient use of the judicial resources. The parties have taken no action since. Hearing on the motion is continued to **Monday, December 23, 2024 at 8:30 a.m. in Department 63**. The parties are **ORDERED** to meet and confer regarding whether this motion can be resolved by Stipulation and Order. If a ruling on the merits is necessary, the Court **ORDERS** that the parties file a joint statement outlining the disputed issues no later than December 13, 2024. **No appearance is necessary on today’s calendar.**

JONES, ET AL. VS. DIETRICK**Case Number: 23CV-0203841**

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiffs Tiffany Jones, Christopher Beisel and Raeven Jones-Beisel and counsel Wilshire Law Firm on August 28, 2024 for failure to timely serve pleadings on Defendant pursuant to CRC 3.110(b). The Complaint was filed on December 8, 2023. “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). A written response was filed that provides sufficient excuse for the delay. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, December 23, 2024 at 9:00 a.m. in Department 63** for review regarding status of service. Plaintiffs are **ORDERED** to either effect proper service or seek authority to serve by publication prior to the next hearing. **No appearance is necessary on today’s calendar.**

JPMORGAN CHASE BANK, N.A. VS. WOULFE**Case Number: 24CVG-00093**

Tentative Ruling on Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted: Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff’s Requests for Admission, Set One. Despite being timely served, Defendant Dillon E Woulfe did not file an Opposition.

When a party fails to respond to a Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff’s moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame.